

4-960.2. Affirmation in support of expungement; upon release without conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF _____

_____ JUDICIAL DISTRICT COURT

In re _____, Petitioner. No.

AFFIRMATION IN SUPPORT OF EXPUNGEMENT
(Upon Release without Conviction)

I, _____, (*Petitioner name*), am requesting the expungement of records under Section 29-3A-4 NMSA 1978 (Expungement of Records upon Release without Conviction), and hereby affirm the following:

☐ No charge or criminal proceeding is pending against me in any state or federal court in the United States.

OR

☐ The following charge(s) or criminal proceeding(s) are pending against me in New Mexico state court:

☐ The following charge(s) or criminal proceeding(s) are pending against me in another state court: _____

☐ The following charge(s) or criminal proceeding(s) are pending against me in federal court:

I, Petitioner, declare under penalty of perjury under the laws of the State of New Mexico that the statements herein are true and correct.

(*Petitioner Signature*)

(*Print Name*)

Street Address

City

State

Zip Code

(*Telephone*)

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases filed or pending on or after January 28, 2022.]